



Procedure No: EXP202308045 (PS/00377/2023)

RESOLUTION OF SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 01/05/23, Mr. A.A.A. (hereinafter, the complainant) submitted a complaint to the Spanish Agency for Data Protection. The complaint is directed against the entity, DREAM HOUSE SISTEMAS DE DESCANSO, S.L. with CIF: B86487717 (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The facts stated by the complainant are as follows:

"On October 29, 2022, we purchased a product from the company CAMASTOCK. In the process of acquisition, and solely for the purpose of contact for delivery, we were asked for a contact number. Since then, I have been receiving systematic text messages on my phone. I have requested, via email, the revocation of the data, warning the company about the unauthorized use of my data (I have confirmed that the sales contract does not include any section that allows the transfer of my data or the use that will be made of it), but I have not received any response."

Along with the complaint, the following documentation is attached:

- Delivery note and invoice dated 29/10/22 for several products purchased from DREAM HOUSE SISTEMAS DE DESCANSO, S.L.- B86487717.
- Copy of the advertising SMS received on the days 18/11/22, 08/12/22, and 15/01/23, inviting him to access the website <https://lan.to....> to offer promotional offers for "CAMASTOCK" products.
- Screenshot of the website, <https://camastock.es/>, where the email address: calidad@camastock.com appears, along with the contact phone number of the entity.
- Copy of the email sent on 15/01/23, from the complainant's email address to calidad@camastock.com with the following message:
"To whom it may concern: I am contacting you to inform you that I have not given my consent for you to use my phone number for advertising purposes. For this reason, I kindly urge you to respond to this email confirming its removal from any of your databases."
- Copy of the advertising SMS received on the days 04/02/23, 12/03/23, and 30/03/23, inviting him to visit the website <https://lan.to...>, to offer promotional offers for "CAMASTOCK" products.

SECOND: On 13/06/23, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded the complaint to the respondent for analysis and to inform, within one month, about what was stated in the complaint. The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), according to the certificate from the Electronic Notifications and Electronic Address Service, was sent to the respondent on 28/03/23, through the electronic notification service "NOTIFIC@", being automatically rejected on 24/06/23. Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, a copy was sent by postal mail to the address indicated in the Central Commercial Registry as the registered office: ***ADDRESS.1, which was returned to sender on 06/07/23, with the message "unknown."

THIRD: On 01/08/23, the Director of the Spanish Agency for Data Protection issued an agreement to admit the processing of the complaint submitted, in accordance with Article 65 of the LOPDGDD.

FOURTH: On 20/09/23, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the entity, DREAM HOUSE SISTEMAS DE DESCANSO, S.L. with

CIF: B86487717, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), for the alleged infringement of Article 21.1 of the LSSI, classified as "minor" in Article 38.4.d) of said regulation, regarding the sending of advertising SMS after the complainant opposed it. In the opening agreement, it was determined that the sanction that could correspond, considering the existing evidence at that time and without prejudice to what resulted from the instruction, would amount to a total of 2,500 euros (two thousand five hundred euros). Furthermore, it was indicated to the respondent that if, within the stipulated period, they did not make allegations to this initiation agreement, it could be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

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The transfer was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP). According to the Certificate from the State-owned Company Correos y Telégrafos, S.A., the initiation document sent to the registered office, according to the Central Commercial Registry, ***ADDRESS.1, was returned to the sender marked as "unknown" on 04/10/23.

On 11/10/23, the notification of the initiation agreement was made through an announcement in the Single Edict Board of the Official State Gazette, in accordance with Article 44 of the LPACAP. This announcement informs the respondent of the possibility of obtaining a copy of the opening agreement.

FIFTH: Once the aforementioned initiation agreement was notified in accordance with the provisions established in the LPACAP and the period granted for the submission of allegations has elapsed, it has been confirmed that no allegations have been received from the respondent in this Agency.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the LSSI attributed to the respondent, and the sanction that could be imposed.

Therefore, considering that the respondent has not made any allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In light of all that has been acted upon, the following facts are considered proven by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS

Single: The facts stated by the complainant in their complaint refer to the fact that, after purchasing a product from the company CAMASTOCK, they began to receive text messages on their phone. They have requested, via email, the revocation of their data to stop receiving further commercial advertising but have not received any response.

Along with the complaint, the following documentation is attached:

- Delivery note and invoice dated 29/10/22 for various products purchased from DREAM HOUSE SISTEMAS DE DESCANSO, S.L.- B86487717.
- Copy of the advertising SMS received on 18/11/22, 08/12/22, and 15/01/23.

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- Copy of the email sent on 15/01/23, from the complainant's email address to calidad@camastk.com requesting that no more advertising messages be sent to them.

- Copy of the advertising SMS received on 04/02/23, 12/03/23, and 30/03/23.

LEGAL GROUNDS

I.

Competence.

The Director of the Spanish Agency for Data Protection is competent to resolve this Sanctioning Procedure, in accordance with the provisions established in Article 43.1, second paragraph, of the LSSI and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD.

The Fourth Additional Provision of the LOPDGDD establishes, regarding the "Procedure in relation to the powers attributed to the Spanish Agency for Data Protection by other laws," that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the powers attributed to it by other laws."

II.

Summary of the events that occurred.

According to the complainant, after purchasing products from CAMASTOCK, they began to receive advertising messages via SMS on their phone. Although they have requested via email the revocation of their data for the sending of advertising, they have not received any response and continue to receive advertising messages via SMS.

III.

Classification of the infringement.

The fact that the respondent sends advertising SMS to the complainant after they have requested not to receive further advertising constitutes a violation of the provisions established in Article 21 of the LSSI, which states the following:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous paragraph shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of their own company that are similar to those that were initially the subject of the contract with the client.

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In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications directed to them.

When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such address is prohibited.

IV.

Sanction

The aforementioned infringement of Article 21 of the LSSI is classified as minor in Article 38.4.d) of said regulation, which qualifies as such, "The sending of commercial communications by email or another equivalent electronic means when the requirements established in Article 21 are not met and does not constitute a serious infringement."

According to these criteria, it is deemed appropriate to impose a sanction of 2,500 euros (two thousand five hundred euros) for the infringement of Article 21 of the LSSI, for sending advertising messages to the complainant via SMS, having previously opposed this.

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO IMPOSE on DREAM HOUSE SISTEMAS DE DESCANSO, S.L., with NIF B86487717, for an infringement of Article 21 of the LSSI, classified in Article 38.4.d) of the LSSI, a fine of 2,500 euros (two thousand five hundred euros).

SECOND: TO NOTIFY this resolution to DREAM HOUSE SISTEMAS DE DESCANSO, S.L.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must pay the imposed sanction once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account

No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at C/ Jorge Juan, 6

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with the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period. Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

Mar España Martí

Director

of

the

Spanish

Agency

for

Data

Protection

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